

Gaurav v. State of U.P. — Para 6.8 objection liberty against demand notice

High Court of Judicature at Allahabad · Division Bench · 16 August 2022 · WRIT - C No. - 23082 of 2022 · **Writ disposed; Para 6.8 objection liberty with coercive-action stay.**

HEADNOTE

Without expressing any opinion on merits, the Allahabad High Court disposed of a writ seeking to quash Demand Notice No. 5415445 dated 19 October 2020 for Rs 2,71,669 after finding that the paper at page 18 of the petition, relied on by the licensee as a final order, was not a final order. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so filed, the prescribed authority was to decide it in accordance with law within the next four weeks after a reasonable hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever earlier.

FACTUAL SUMMARY

Gaurav challenged Demand Notice No. 5415445 dated 19 October 2020 for Rs 2,71,669 issued by the Executive Engineer, Electricity Distribution Division-I, Aligarh, seeking certiorari to quash it and a mandamus against coercive recovery. Licensee's counsel treated a paper at page 18 of the writ petition as a final order; the Court found it was not. Counsel then stated the petitioner could object to the demand for time-bound decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection as alternative remedy against demand notice

HOLDING

Where the paper produced by the licensee is not a final order, a writ to quash a demand notice is disposed of without merits by giving the consumer liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within a fixed time, directing time-bound decision after hearing, and staying coercive recovery for a short window or until that disposal, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Certiorari against the Aligarh demand notice was refused on merits and the consumer was relegated to a Para 6.8 objection before the prescribed authority, to be decided in accordance with law after hearing. ¶ 1

para-6.8-objection-alternate-remedy After finding no final order on the file, the Court gave four weeks to submit a Para 6.8 objection, four further weeks for a reasoned decision, and an eight-week stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE NO. 5415445 DATED 19-10-2020 FOR RS 2,71,669

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1